

Andhra Pradesh Land Encroachment (Extension and Amendment) Act, 1958

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State of Andhra Pradesh - Act

Andhra Pradesh Land Encroachment (Extension and Amendment) Act, 1958

ANDHRA PRADESH

India

Andhra Pradesh Land Encroachment (Extension and Amendment) Act, 1958

Act 25 of 1958

Published on 13 November 1958

Commenced on 13 November 1958

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Andhra Pradesh Land Encroachment (Extension and Amendment) Act, 1958

(Act

No. 25 of 1958

)

[13th November, 1958]

An Act to extend the Andhra Pradesh Land Encroachment Act, 1905, to certain areas in the State of Andhra Pradesh and further to amend it in its application to that State.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Ninth Year of the Republic of India as follows:

1.

Short title, extent and commencement:-

(1)

This Act may be called the Andhra Pradesh Land Encroachment (Extension and Amendment) Act, 1958. Substituted for the original short title by the First Schedule to the Andhra Pradesh Laws (Amendment of Short Titles) Act, 1961 (A.P. Act IX of 1961).

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

This section shall come into force at once, and the remaining provisions shall come into force on such date as the State Government may, by notification in the Andhra Pradesh Gazette, appoint. (Came into force on the 15-1-1959).

2.

Definitions:-

In this Act, unless the context otherwise requires,-

(a)

"Andhra area" means the territories of the State of Andhra Pradesh which, immediately before the 1st November, 1956, were comprised in the State of Andhra;

(b)

"transferred territories" means the territories specified in sub-section (1) of Section 3 of the State Reorganisation Act, 1956 (Central Act 37 of 1956).

3.

Extension of Act III of 1905 to transferred territories:-

The Andhra Pradesh Land Encroachment Act, 1905 (Act III of 1905), as in force at the commencement of this Act in the Andhra Area (hereinafter referred to as the principal Act), as amended by Sections 4 to 11 is hereby extended to, and shall be in force in the transferred territories.

4.

to 11.

(Amendments made by Sections 4 to 11 have been incorporated in the Andhra Pradesh Land Encroachment Act, 1905 (Act III of 1905).

12.

Power to remove difficulties:-

(1)

If any difficulty arises in giving effect to the provisions of this Act, or of the principal Act as extended by this Act, in their application to the transferred territories, in consequence of transaction to the said provisions from the corresponding provisions of the Act in force therein immediately before the commencement of this Act, the State Government may, by order in the Andhra Pradesh Gazette, make such adaptations or modifications of the said Act not affecting the substance, or make such provisions as appear to them to be necessary or expedient for removing the difficulty :

Provided that the power conferred by this sub-section shall not be exercisable after the expiration of three years from the commencement of this Act.

(2)

If any difficulty arises in giving effect to the provisions of this Act, or of the principal Act as extended by this Act, otherwise than in relation to the transition from the provisions of this corresponding Act in force before the commencement of this Act, in their application to the transferred territories, the State Government may, by order, make such provisions not inconsistent with the purpose of this Act or of the principal Act as extended by this Act, as appear to them to be necessary or expedient for removing the difficulty.

13.

Effect of other laws:-

Nothing contained in the Andhra Pradesh (Telangana Area) Land Revenue Act, 1317 F (Act VIII of 1317 F) shall apply in so far as it relates to any matter or proceeding dealt with in the principal Act as amended by this Act except as respects things done or omitted to be done before the commencement of this Act.

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